POLICY DOCUMENT

Concerns Reporting, Whistleblower Protection & Non-Retaliation Policy

Accessible reporting, impartial review, and protection against retaliation

Policy ID: NSF-CR-01	Status: Proposed for Board Approval
Approval / Effective Date: To be established	Policy Owner: Board of Directors / designated administrator

1. Purpose and scope

NSF encourages responsible reporting of concerns about financial stewardship, safety, discrimination, harassment, conflicts, integrity of organizational records, misuse of property, competition conduct, policy compliance, and governance practices.

This Policy applies to directors, officers, committee members, coaches, mentors, volunteers, parents, students, donors, and community partners. It is an internal channel for review; it is not a prerequisite to lawful reports to government agencies, law enforcement, the courts, or competition authorities.

2. Ways to report a concern

A concern may be submitted in writing to the responsible program lead, the Secretary, or the President, according to its subject. The current public entry point is the NSF Contact page or the Foundation contact email listed there. NSF shall designate and publish an alternative recipient when the ordinary contact is materially involved or unavailable.

For a concern involving multiple officers or the President, a director or specifically designated unconflicted Board reviewer may receive the report. A person may submit a good-faith concern without needing to use the accused person as the sole reporting channel.

Reports should identify what happened, approximate dates, relevant records, persons with direct knowledge, any immediate risk, and the requested response when practicable. An incomplete report should still be assessed appropriately. A parent or guardian may report for a child.

3. Immediate safety and mandatory reporting

Emergencies require immediate assistance from appropriate emergency services. Anyone with reasonable cause to believe a child has suffered abuse or neglect must follow Texas Family Code §261.101. Under the general rule, a report is made immediately; covered professionals are subject to their applicable 24-hour requirement and cannot delegate that duty.

No internal review, permission, vote, mediation, or consultation may delay a legally required external report. NSF personnel shall avoid attempting a private investigation that interferes with child-protection or law-enforcement authorities. Relevant competition and venue reporting requirements are additional where applicable.

4. Receipt and initial assessment

NSF should acknowledge receipt within five business days where reasonably practicable, unless acknowledgment could create a safety, confidentiality, or investigatory concern. This is a proposed administrative target, not a universally mandated response deadline.

The designated recipient shall assess immediate safety and evidence-preservation needs, determine the review authority, identify material conflicts, and separate program administration from corporate or legal matters. If the Board or officer lacks authority to provide the requested remedy, this limitation should be explained accurately.

5. Independence and review procedure

A materially involved person shall not serve as the sole investigator or final decision-maker regarding allegations against that person. NSF may appoint unconflicted directors, another qualified reviewer, or independent counsel or professionals as warranted by seriousness and available resources.

Review should consider the original report, relevant correspondence and records, first-hand accounts, other materially relevant information, and the response of persons whose conduct is questioned. Findings shall distinguish established facts, conflicting evidence, inferences, and unresolved questions.

No conclusion of knowing falsity may be drawn merely because an allegation is disputed, mistaken, or not substantiated. Confidentiality and access shall be handled subject to legal process, rights of inspection, and appropriate protections.

6. Fair response and corrective action

When adverse organizational action is under consideration, the affected person should ordinarily receive the substance of the concern and an appropriate opportunity to respond, unless safety or legal constraints require temporary measures. Authorized decision-makers may take proportionate actions such as training, procedure correction, restitution through valid approval, safeguarding restrictions, or referral.

Student-role changes, participation decisions, committee appointments, officer positions, and director status are distinct. Each action must use its own lawful authority and procedure. This Policy alone does not create new removal powers or reduce quorum.

7. Good-faith reporting and anti-retaliation

NSF prohibits retaliation for raising a good-faith concern, seeking a lawful inspection, assisting an investigation, reporting to an agency, filing or participating in a legal proceeding, or opposing discrimination or unsafe practices.

Prohibited retaliation includes adverse student selection, exclusion from required governance notices, threatened punishment for reporting, or changes to opportunities based solely on the person's protected conduct. The prohibition does not immunize separately established misconduct, but discipline must rest on an independently supported reason and follow the applicable process.

Board members may disagree vigorously, request explanations, or recommend policy changes. Respectful dissent and unsubstantiated but good-faith complaints are not automatically disruptive conduct.

8. Confidentiality and preservation

Reports, statements, meeting records, and supporting communications shall be shared only with people who have a legitimate role or lawful entitlement. NSF cannot promise absolute anonymity or secrecy where fairness, public disclosure, director/member rights, regulation, litigation, or child-protection law requires disclosure.

When litigation, an agency inquiry, or potential dispute is pending or reasonably anticipated, related emails, texts, chat messages, attachments, minutes, recordings, financial records, website versions, and other materials must be preserved under the Records Policy. Do not delete original evidence or rewrite a record to conform to later interpretations.

9. Outcome and request for reconsideration

NSF should provide the reporting person an appropriate acknowledgment that review has concluded, subject to privacy, personnel confidentiality, privilege, and legal constraints. A report does not guarantee a requested resolution.

A person may identify a material factual error or procedural deficiency for further consideration by an unconflicted reviewer. A new report or external complaint is not conditioned on acceptance of an internal outcome.

10. Board monitoring and prospective application

An unconflicted Board-designated function shall periodically summarize the number and general categories of concerns, response timeliness, process improvements, and unresolved risks without publishing names or sensitive details.

This Policy governs future reports and review activities from its effective date. It does not determine any previous complaint, records request, lawsuit, disputed vote, or alleged departure. Prior preservation and legal duties apply independently.

Source and implementation notes (non-operative)

The following references informed the draft. They do not establish that this policy has been adopted, that every clause is legally mandatory, or that existing governance questions are resolved. Confirm against the documents and law controlling when NSF adopts the policy.

- Texas Family Code §261.101: https://tcss.legis.texas.gov/resources/FA/htm/FA.261.htm
- Texas AG charitable complaints: https://www.texasattorneygeneral.gov/divisions/charitable-trusts/charitable-trusts-complaints
- QCRA Whistleblower Policy (structure and reporting channels): https://www.queencityrobotics.org/whistleblowerprotection
- Texas Business Organizations Code Chapter 22 (director rights and governance): https://tcss.legis.texas.gov/resources/BO/htm/BO.22.htm